

Before the
FEDERAL MARITIME COMMISSION

Docket No. 24-21

PKDC, LLC

v.

CMA CGM S.A.

JOINT MOTION TO AMEND THE SCHEDULING ORDER

Pursuant to 46 C.F.R. Sections 502.69 and 502.102 of the Federal Maritime Commission's Rules of Practice and Procedure, Complainant PKDC, LLC ("Complainant" or "PKDC"), and Respondent CMA CGM S.A. ("Respondent" or "CMA CGM" and, collectively with PKDC, the "Parties"), by their respective undersigned counsel, hereby jointly submit this Joint Motion to Amend The Scheduling Order ("Motion") to allow for sufficient time to work through electronic discovery issues, for the completion of discovery, the development of a full record and briefing in this matter. As discussed below, good cause exists for the instant Motion.

I. Background

On July 23, 2025, the Presiding Officer entered a scheduling order ("Scheduling Order") with the following deadlines relevant to this Motion:

August 21, 2025	Disclosure of initial expert reports, if any
August 21, 2025	Last day to serve interrogatories, requests for admission, and RFPs
September 2, 2025	Complete depositions of fact witnesses
September 2, 2025	Disclosure of rebuttal expert reports, if any
September 19, 2025	Complete expert depositions
September 19, 2025	Close of discovery
October 21, 2025	Complainant's initial brief, proposed findings of fact, and appendix
November 18, 2025	Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix
November 28, 2025	Complainant's reply and responses to proposed findings of fact

In accordance with the Scheduling Order, the Parties produced electronic discovery totaling several tens of thousands of documents and on August 21, 2025, Complainant also produced supplemental responses to Respondent's First Interrogatories.

During the parties' review of the electronic productions, certain errors were discovered and on August 19, 2025, the parties met to discuss. As a result of the discussion it was discovered that due to an electronic production error Respondent's full production was not provided to Complainant. As such respondent will be supplementing its electronic production with an additional 30,000 documents representing even a larger number of pages. The parties also discovered potential issues with the bates numbering of Complainant's production and issues preventing a full review of certain documents or associating attachments with emails in Respondent's production.

The parties continue to work diligently and collaboratively to identify any further production issues and correct same, however, it is a time consuming but necessary process to ensure a complete record. Time will also be needed for the parties to review the corrected

productions ahead of depositions.

II. Argument

Rule 102(a) of the Commission's Rules of Practice and Procedure, 46 C.F.R. Section 502.102(a), provides in relevant part: "Motions for enlargement or reduction of time for the filing of any pleading or other document, or in connection with the procedures of subpart L of this part, may be granted upon a showing of good cause." The Parties submit good cause exists in this instance.

a. Extension of Deadlines of Discovery and Briefing

FMC regulations require discovery to be completed within 150 days of a respondent's answer (46 C.F.R. 502.141(g)) which is sufficient time for many disputes. However, as explained in earlier motions, this matter involves a multitude of complex claims, a request for substantial reparations, and relevant discovery span multiple years. As a result of the breadth and complexity, electronic collections of documents and production was necessary which is itself time consuming and complex.

The parties note that in complex matters such as the instant case, policy considerations favor allowing sufficient time to develop a complete evidentiary record. In *Samsung Electronics America, Inc. v. SM Line Corp.*, Dkt. No. 23-01, 2024 WL 4357751, at *1 (ALJ Sept. 23, 2024), it was emphasized that the policy and responsibility of the Commission, and by delegation of authority, the presiding judge, is to inquire into and consider all relevant facts. Adherence to a schedule should not override these policy considerations. *See also Anderson International Transport and Own Anderson - Possible Violations of Sections 8(a) and 19 of the Shipping Act of 1984*, Dkt. No. 07-02, 2009 WL 6084172, at *2 (FMC Dec. 4, 2009) (reopening the record because Commission precedent "favors the agency making its decision based on the most complete record available").

Indeed, the FMC has recently allowed for additional time in similar instances. For example, a 62-day extension to complete discovery was granted in *One Banana North America Corp. v. Hapag-Lloyd AG and Hapag-Lloyd (America) LLC*, FMC Docket No. 22-03, Revised Scheduling Order, June 22, 2022; a 60-day extension to complete discovery was granted in *Intermodal Motor Carriers Conference, American Trucking Associations, Inc. v. Ocean Carrier Equipment Management Association Inc., et al*, FMC Docket No. 20-14, Amended Scheduling Order, June 9, 2021; and a 60-day extension to complete discovery was in *Bed Bath & Beyond Inc., v. Yang Ming Marine Transport Corp.* FMC Docket No. 23-10, Revised Scheduling Order, Order on Motions, January 11, 2024.

III. Proposed Amended Schedule

Given that the parties are working diligently to resolve discovery issues without unnecessarily burdening the Commission, and the voluminous nature of the discovery necessary in the instant matter, the parties respectfully request an approximately 60-day extension of the scheduling order as follows to allow completion of discovery and account for intervening holidays in the briefing schedule:

October 20, 2025	Disclosure of initial expert reports, if any
October 20, 2025	Last day to serve interrogatories, requests for admission, and RFPs
November 3, 2025	Complete depositions of fact witnesses
November 3, 2025	Disclosure of rebuttal expert reports, if any
November 18, 2025	Complete expert depositions
November 18, 2025	Close of discovery
December 22, 2025	Complainant's initial brief, proposed findings of fact, and appendix
January 22, 2025	Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix
January 30, 2025	Complainant's reply and responses to proposed findings of fact

WHEREFORE, the Parties jointly pray that this joint Motion for an extension be granted.

Dated: August 21, 2025

Respectfully submitted,

SANDLER, TRAVIS & ROSENBERG, P.A

COZEN O'CONNOR

/s/ Jason M. Kenner

Jason M. Kenner
Andrew Margolis
675 Third Avenue
Suite 1805-06
New York, NY 10017
Telephone: (212) 549-0137

Counsel for Complainant PKDC, LLC

/s/ Wayne R. Rohde

Wayne R. Rohde
Kathryn Sobotta
2001 M Street NW
Suite 500
Washington, DC 20036
Telephone: (202) 463-2507

Counsel for Respondent CMA CGM S.A.